

Contentious Chamber

Decision on the merits 53/2025 of March 14, 2025

File number: DOS-2019-04744

Subject: the processing of personal data by an erotic sauna

The Contentious Chamber of the Data Protection Authority (hereinafter 'the DPA'), composed of Mr. Hielke HIJMANS, president, and Messrs. Jelle Stassijns and Frank De Smet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA"¹;

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

the complainant:

X, represented by Me Davina Claus, hereinafter "the complainant";

the defendant:

Y, represented by Me Henk de Kesel, hereinafter "the defendant".

1 The DPA reminds that the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (LCA) and the new internal regulations of the DPA came into force on June 1, 2024. The new provisions apply to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber that commence from that date. The new LCA is available via the following link:

<https://www.ejustice.just.fgov.be/cgi/loi/article.pl?language=fr&txt=f&type;=&sort;=&numac;search=&cn;search=2017120311&caller;=SUM&&view;numac=2017120311nx>

and the internal regulations via the following link:

<https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>. Files initiated before June 1, 2024, such as in this case, are subject to the provisions of the LCA and the internal regulations as they existed before that date.

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I. Facts and procedure

1.

The subject of the complaint concerned the installation of two surveillance cameras that filmed the public road. Outside the scope of the complaint, this decision, taken after an investigation by the Inspection Service, also concerns the processing of personal data by the defendant on its website, given its activities as an erotic sauna.

2.

On October 14, 2019, the complainant filed a complaint with the Data Protection Authority against the defendant. The defendant's cameras were allegedly directed towards the public road, there was temporarily no pictogram indicating the existence of camera surveillance, no data of the data controller was completed on the previously present pictogram, and the complainant was never consulted regarding the installation of the cameras. The complainant therefore requested that the cameras be removed.

3.

The complaint included an email from the neighborhood officer with the following information:

- The cameras were requested and installed in accordance with the legislation and were correctly registered with the police.
- The cameras were not directed towards neighboring houses but rather towards "the sidewalk and the

public road along [complainant's street] and towards the sidewalk at the corner of [complainant's street] and [street]."

- A pictogram mentioning the address and phone number of the controller was indeed affixed.

4.

On October 29, 2019, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

5.

On November 8, 2019, the Contentious Chamber decided to request an investigation by the Inspection Service, pursuant to Articles 63, 2° and 94, 1° of the LCA. In accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation was transmitted to the Inspection Service, along with the complaint and the inventory of documents.

6.

On March 6, 2020, the investigation by the Inspection Service was concluded, the report was attached to the file, and it was transmitted by the inspector general to the president of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA).

The report contained findings related to the subject of the complaint and concluded that:

1. Y was the data controller for the processing of personal data carried out through the installed cameras;

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2. There was a violation of Article 8 of the Camera Law² and Article 1 of the Camera Decree³, due to the absence of a pictogram that should indicate the existence of camera surveillance;

3. There was a violation of Articles 7.2° and 8.1° of the Camera Decree, as the purposes of the processing and the legal basis for the processing were not clearly defined. The report also included findings that exceeded the scope of the complaint. The Inspection Service found, in broad terms, that:

1. There was a violation of Articles 12, 13, and 14 of the GDPR, as the privacy statement was not sufficiently transparent and understandable and was incomplete;
2. There was a violation of Articles 30.4 and 31 of the GDPR, as no record of processing activities was submitted to the Inspection Service and no reasoned response was provided regarding whether a data protection officer had been designated or not.

7. On June 2, 2020, the concerned parties were informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

The scope of the case was established based on the following alleged violations:

- Possible violation of provisions of the Camera Law
- Possible violation of Articles 12, 13, 14, 20, and 31 of the GDPR.

The deadline for receiving the defendant's response conclusions was set for July 3, 2020, the deadline for the complainant's reply conclusions for July 17, 2020, and finally the deadline for the defendant's reply conclusions for July 31, 2020.

8. On June 29, 2020, the deadlines for submitting conclusions were extended at the request of the defendant. The deadline for receiving the defendant's response conclusions was set for July 17, 2020, the deadline for the complainant's reply conclusions for August 7, 2020, and finally the deadline for the defendant's reply conclusions for August 28, 2020.

2 Law of March 21, 2007 regulating the installation and use of surveillance cameras.

3 Royal Decree of May 8, 2018 regarding the declarations of installation and use of surveillance cameras and the register of processing activities of surveillance camera images.

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9. On July 15, 2020, the Litigation Chamber received the defendant's response conclusions regarding the alleged violations within the scope of the complaint and the alleged violations outside the scope of the complaint.

10. On August 6, 2020, the Litigation Chamber received the complainant's reply conclusions.

11. On August 28, 2020, the Litigation Chamber received the summary conclusions of the defendant

regarding the alleged violations within the scope of the complaint.

12. On August 31, 2020, the complainant requested an extension to submit their conclusions. On September 9, 2020, the defendant opposed the granting of an extension for submitting conclusions. On the same day, the complainant added a new document to their collection of documents. On September 14, 2020, the Litigation Chamber refused to grant the complainant an extension to submit conclusions and referred to the hearing that would still take place.

13. On October 22, 2020, the parties were informed that the hearing would take place on November 30, 2020.

14. On November 30, 2020, the parties were heard by the Litigation Chamber.

15. On December 6, 2020, the minutes of the hearing were submitted to the parties. On the same day, the parties were invited to submit further conclusions regarding:

- The legal basis for the processing of personal data by surveillance cameras,
- Their viewpoint on the applicability of the processing prohibition of Article 9.1 of the GDPR and any exceptions to this processing prohibition of Article 9.2 of the GDPR,
- The measures that have been taken to process personal data in the guestbook in accordance with Articles 5 and 6 of the GDPR.

The deadline for receiving the defendant's additional response conclusions was set for December 22, 2020, the deadline for the complainant's reply conclusions for December 29, 2020, and finally the deadline for the defendant's reply conclusions for January 5, 2021.

16. On December 22, 2020, the Litigation Chamber received the defendant's additional response conclusions.

17. On January 5, 2021, the Litigation Chamber received the complainant's additional reply conclusions.

18. On January 13, 2021, the defendant indicated that they no longer wished to submit additional reply conclusions.

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II. Motivation

II.1. Description of the processing

19.

The initial complaint concerned the processing of images from two surveillance cameras installed on the exterior façade of the defendant's building for the purpose of "preventing further damage to our building and public properties." These two cameras were properly requested and declared to the local police. During the hearing, it was revealed that a third camera was installed in the access vestibule of the building, directed at the entrance of the building.

20. An erotic sauna was operated in the building. The website of the erotic sauna included a privacy statement as well as a guestbook.

II.2. The complaint and alleged violations

21.

Article 58 of the LCA states: "Any person may file a complaint or a written request, dated and signed, with the Data Protection Authority. [...]". In accordance with Article 60 of the LCA, a complaint is admissible when it:

- a. is drafted in one of the national languages;
- b. contains a statement of facts and the necessary indications to identify the processing to which it relates;
- c. falls within the jurisdiction of the Data Protection Authority.

22.

The Contentious Chamber has already issued the following considerations in a previous decision: "Although the GDPR considers the 'complaint' from the perspective of the data subject, imposing obligations on supervisory authorities when a person files a complaint (see Articles 57, 1.f) and 77 of the GDPR), the GDPR does not prevent national law from allowing other persons than the data subjects to file a complaint with the national supervisory authority. The possibility of such a referral corresponds to the missions assigned to supervisory authorities by the GDPR. In this regard and generally, each supervisory authority: ensures the enforcement of the GDPR and compliance with it

(Article 57.1.a) of the GDPR) and carries out any other mission related to the protection of personal data (Article 57.1.v) of the GDPR)."

4 Exhibit 16, Investigation Report, p. 12.

5 See among others decision 106/2022 of June 28, 2022, by the Contentious Chamber; decision 117/2021 of October 22, 2021, by the Contentious Chamber; and decision 80/2020 of December 17, 2020, by the Contentious Chamber.

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23.

In summary, the LCA does not exclude that another person than the data subject or the person mandated by them, in the sense of Article 80 of the GDPR as developed in Article 220 of the law of July 30, 2018, regarding the protection of natural persons with regard to the processing of personal data, may file a complaint with the DPA.

24.

More specifically, the Contentious Chamber believes that Article 58 of the LCA gives any person the possibility to file a complaint, provided they have sufficient interest.

25.

The Contentious Chamber notes that the complainant resides in the building next to the erotic sauna and therefore must pass daily in front of the surveillance cameras. The complainant also specifically draws attention to the violations of privacy that she suffers in this regard. The Contentious Chamber believes that the complainant demonstrates sufficient interest to file a complaint against the processing of images from the cameras.

26.

In its conclusions, the defendant emphasizes the background of the complaint and whether new elements have been introduced after this procedure, as well as the deteriorated relationship between her and the complainant. According to the Contentious Chamber, neither of these two considerations limits the complainant in her right to file a complaint against an alleged unlawful processing of personal data for which she can demonstrate an interest.

27.

Outside the framework of the complaint, it is not excluded that a complaint may lead to a more comprehensive and substantial inspection by the Inspection Service, as also confirmed by the Market Court. In this case, the Inspection Service also noted potential violations of the transparency obligation under Articles 12, 13, and 14 of the GDPR and the obligation to cooperate in presenting the register of processing activities to the supervisory authority, as outlined in Articles 30.4 and 31 of the GDPR.

28.

Finally, the Contentious Chamber noted during the hearing that elements were missing to make a reasoned decision. Taking into account the right to defense, the parties were granted an additional deadline to submit their conclusions to explain their viewpoint regarding

- the legal basis for the processing of images from the cameras,

6 In decision 29/2025 of February 18, 2025, the Contentious Chamber decided that a neighbor had sufficient interest given that he lived in the neighborhood of the recording area and regularly passed through that area.

7 Brussels Court of Appeal (Chamber 19A, Market Court Section), judgment of June 14, 2023, no. 2023/4583, pp. 29-30:

"Companies must, however, be aware that a single determined incident can lead to a comprehensive inspection and substantial control of a company or organization's compliance with the GDPR, which in turn may lead to sanctions for non-compliance with certain obligations of the GDPR that were not initially the trigger for the inspection." [N.B.: freely translated by the Translation Service of the Data Protection Authority, in the absence of an official translation.]

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a possible exception to the general prohibition on processing data from special categories of personal

data and

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the measures taken to ensure that the processing of personal data in the guestbook complies with Articles 5 and 6 of the GDPR.

II.3. Determination of the Data Controller

29.

In accordance with Article 4(7) of the GDPR, the data controller is to be understood as "the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and means of the processing."

30. The Court of Justice has repeatedly interpreted the concept of "data controller" broadly in its case law to ensure effective and comprehensive protection of the data subjects.

31.

According to the EDPB Guidelines 07/2020, the quality of the relevant data controller(s) must be concretely assessed. Furthermore, according to these same guidelines, the concepts of "purposes" and "means" must be examined together in an inseparable manner, and it is necessary to establish who determines the 'why' (the purposes) and the 'how' (the means) of the processing.

32.

The Inspection Service found, based on the data in the Crossroads Bank for Enterprises, that the defendant was the data controller for the images from the building's cameras. During the hearing, it became apparent that the defendant considered itself to be the data controller for the images from the cameras.

33. However, the defendant does not operate the erotic sauna itself. For this activity, it leases the building to the actual operators. Regarding the website and the guestbook, the defendant therefore believes that the operators of the erotic sauna should be considered the data controllers. In the conclusions following the hearing, during which additional questions were raised regarding the processing of personal data via the guestbook, the defendant explains that the privacy statement specifies that [C.S.], in this case the operator of the erotic sauna, is the 'data processor' for the personal data related to the website and the guestbook.

8 See, in particular, CJEU, judgment of June 5, 2018, *Wirtschaftsakademie Schleswig-Holstein*, C-210/16, EU:C:2018:388, paragraphs 27-29.

9 EDPB, Guidelines 07/2020 on the concepts of controller and processor in the GDPR, Version 2.0, Adopted on July 7, 2021, point 12.

10 Ibid., point 36.

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34. Regarding the images from the cameras, the Contentious Chamber finds that the defendant determined the purposes and means of processing the images from the cameras, established contacts with the firm responsible for the installation, and also decided to disconnect the cameras through the installation firm.

35. Regarding the personal data processed via the website, the Contentious Chamber finds that:

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the defendant states in its letter to the Inspection Service that it is also the manager of the sauna: "I am writing to you as the manager of the sauna [...] regarding the complaint attached" [Translator's Note: all passages quoted in this document have been freely translated by the translation service of the Data Protection Authority, in the absence of an official translation], after which the defendant responds to questions regarding the website and the privacy statement on the website;

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in the Crossroads Bank for Enterprises, the defendant's main activity is listed as: 'Saunas, solariums, spas, etc.';

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the defendant's counsel assumes the entire defense of the defendant, including the defense against alleged violations on the website and in the privacy statement of the erotic sauna, without any reservations;

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during the hearing, the defendant indicated that the operators "are both employees of the company."
36. In light of the above, the Contentious Chamber believes that the defendant is also responsible for the processing of data that is processed on the website of the erotic sauna, including in the privacy statement and the guestbook.

II.4. Regarding the Processing of Images from the Cameras

37.

Filming public roads using surveillance cameras that record images is a very sensitive subject. Based on the findings of the Inspection Service, this constitutes a historical violation of provisions of the Camera Law. At the end of the hearing, however, the defendant had indicated to the Contentious Chamber its intention to deactivate the cameras "thus putting an end to the entire issue." In the conclusions following the hearing, the defendant revisited this intention and confirmed that the cameras had been

11 Document 12, Email with an initial response to the questions from the Inspection Service and mention that the security camera installation service [...] will communicate all requested information as soon as possible via a separate email, p. 1.

12 Document 16, Investigation Report, p. 5.

13 Document 54, Email to the parties with the minutes of the hearing of November 30, 2020, and additional questions, p. 10.

14 Document 54, Email to the parties with the minutes of the hearing of November 30, 2020, and additional questions, p. 11.

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deactivated. The defendant proved this with a certificate from the installer dated December 8, 2020. The cameras were unplugged and the wiring was cut. The hard drive of the recording system was removed and destroyed.

38. Based on these measures, in accordance with Article 100, § 1, 2° of the LCA, the Contentious Chamber orders the dismissal regarding the processing of images from the cameras. Given this dismissal, the Contentious Chamber will no longer address the legality of the processing of images from the cameras.

39. Article 4, § 1 of the LCA states: "The Data Protection Authority is responsible for monitoring compliance with the fundamental principles of personal data protection, within the framework of this law and laws containing provisions relating to the protection of personal data processing." At the time the cameras are unplugged, they no longer process personal data and the DPA ceases to have jurisdiction. The Contentious Chamber is not competent to order the removal of the unplugged cameras, as the complainant demands in her conclusions, since the cameras in question no longer process personal data.

II.5. Regarding the register of processing activities

40. The Inspection Service found that the data controller could only submit the register of processing activities related to images and not the register of processing activities as defined in Article 30 of the GDPR. For this reason, the Inspection Service finds a violation of Articles 30 and 31 of the GDPR.

41. The defendant indicated a misunderstanding regarding the register of processing activities and clarified that this misunderstanding arose because she was convinced that no personal data was being processed.

42. The Contentious Chamber notes that the defendant has two narratives. On one hand, she is convinced that she does not process any personal data and cannot or should not have a register of processing activities; on the other hand, she specifies in the privacy statement that the name (preferably an alias or a diminutive), the municipality, and the email address of the data subjects are processed so that they can be contacted by email and complete the online guestbook. The guestbook itself may also contain data that could lead to the identification of a client of the erotic sauna.

43. The Contentious Chamber believes that the defendant has not maintained a register of processing activities and has thus violated Article 30 of the GDPR.

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II.6. Regarding the privacy statement on the defendant's website

44. In its investigation outside the scope of the complaint, the Inspection Service assessed the privacy statement on the defendant's website on November 13, 2019. Following its intervention, the Inspection Service found that the privacy statement had been adapted by the defendant. On February 27, 2020, the Inspection Service evaluated this new privacy statement.

45. The inspection report established, on one hand, that the privacy statement was not transparent and understandable, as several terms were not explained and it was stated that only the customer section manager and the manager had access to the guestbook, while this guestbook is publicly accessible on the website. On the other hand, mandatory information under Article 13 or 14 of the GDPR was missing, notably concerning the identity of the data controller, the retention periods for personal data, the purposes of processing, the legal basis for processing, and the rights of the data subjects.

46. The defendant emphasized the discretion that accompanies the nature of her activities and thus the limited processing of personal data. Furthermore, the privacy statement was adapted again on June 12, 2020. With this new adaptation, the defendant believed she had remedied the shortcomings mentioned in the inspection report.

47. The Contentious Chamber notes that the privacy statement of June 12, 2020 includes the identity of the data controller (or its representative), retention periods, and the rights of the data subject. The manner in which a data subject can exercise their rights was also explained. However, the Contentious Chamber finds no mention of the legal basis on which the processing of personal data is based.

48. The Contentious Chamber therefore concludes that the defendant has violated Article 13.1.c) of the GDPR due to the absence, in the privacy statement, of the legal bases for the processing of personal data by the defendant.

II.7. Regarding the guestbook on the defendant's website

49. In her summary conclusions, the defendant mentioned the existence of a guestbook on the website of her erotic sauna. During the hearing, the defendant stated that it was not possible to respond in the guestbook. The defendant's aim was to process as little personal data as possible. In her conclusions after the hearing, the defendant reviewed the measures taken in this regard concerning the guestbook.

Clients

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are encouraged to use an alias and not to include identity data in their message. When this does occur, the defendant may intervene by not publishing the message or by deleting it immediately.

50. The Contentious Chamber notes that the website had a guestbook in which clients of the erotic sauna could leave messages. Given the nature of the defendant's activities, the personal data in this regard are data related to the behavior or sexual orientation of a person, as specified by the president of the Contentious Chamber during the hearing, referring to potential images from cameras of clients. Following the intervention of the Inspection Service, the email address of the client who posted a message was deleted; after the hearing, the website emphasized the use of an alias and the avoidance of personal data. The consultation of the public guestbook informs the Contentious Chamber that it is generally first names, initials, or aliases that are used, often in combination with the municipality and possibly with personal remarks that could lead to the specific client in question.

51.

After the hearing, the Contentious Chamber requested additional conclusions regarding this guestbook, particularly on the assurance that this guestbook complied with the principles of Articles 5 and 6 of the GDPR. The defendant's limited response contained no indication of a legal basis for this processing, nor any grounds for an exception to the processing prohibition of Article 9.1 of the GDPR. However, Article 5.2 of the GDPR clearly establishes that the defendant, as the data controller, must be able to demonstrate compliance with Article 5.1, specifically the lawfulness of processing under Article 5.1.a) of the GDPR. The Contentious Chamber finds that the defendant has violated Articles 5.1.a), 6.1, and 9.2 in conjunction with Article 5.2 of the GDPR.

III. Corrective Measures and Sanctions

52.

Pursuant to Article 100, § 1 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;

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- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or deletion of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the case to the public prosecutor of the Brussels Prosecutor's Office, who will inform it of the follow-up to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

53.

Regarding the processing of personal data through surveillance cameras, the Contentious Chamber orders a dismissal since, following the measures taken by the data controller, the subject of the complaint no longer exists.

54.

It is up to the Contentious Chamber to decide on the most appropriate sanction in light of the violations of Articles 5.1.a), 6.1, and 9.2, in conjunction with Article 5.2, Article 13.1.c), and Article 30 of the GDPR and all the circumstances of the case at hand.

55.

The Contentious Chamber is mindful of the fact that the defendant has already made improvements to its data protection policy during the proceedings, that the defendant is actively trying to minimize the processing of personal data, and that this decision has been pending for four years.

56.

In these circumstances, the Contentious Chamber warns the defendant, pursuant to Article 100, § 1, 5° of the LCA, that:

- given its activities, it can only lawfully process personal data based on a legal basis under Article 6.1 of the GDPR in conjunction with an exception under Article 9.2 of the GDPR and must be able to demonstrate this in accordance with Article 5.2 of the GDPR,
- the legal basis for the processing must be clear to the data subject whose personal data it processes in accordance with Article 13.1.c) of the GDPR,
- it must at all times maintain a complete record of processing activities and be able to present it to the DPA in accordance with Article 30 of the GDPR.

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filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code¹⁶, or via the e-Deposit IT system of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Contentious Chamber

16 "The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry."